

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
COUNTY CIVIL

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs.

Case No.: 2023-CC-

JOSE LUIS VASQUEZ, MARY ROSELLA
HUFFMAN VASQUEZ and ANY UNKNOWN
PARTY IN POSSESSION,
Defendants.

/

**COMPLAINT SEEKING POSSESSION OF RESIDENTIAL PREMISES, DAMAGES
AND LIEN FORECLOSURE**

Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, sues the Defendant(s), JOSE
LUIS VASQUEZ, MARY ROSELLA HUFFMAN VASQUEZ, and any Unknown Party in
Possession, in possession of certain premises more fully described below, and alleges:

COUNT I
ACTION FOR POSSESSION

1. This is an action for removal of mobile home park lot tenants and possession of real property in Manatee County, Florida, as authorized by Section 723.061(1)(C)2 of Florida Statutes.
2. Plaintiff is a Foreign Limited Liability Company owning and operating a mobile home park located in Manatee County, Florida.
3. Plaintiff owns the real property located at 900 9th Avenue East, Lot #182, Palmetto, Manatee County, Florida 34221.
4. Pursuant to Florida Statutes §723.031 the residential rental agreement between the Defendants, JOSE LUIS VASQUEZ, and MARY ROSSELLA HUFFMAN VASQUEZ, natural persons, and the Plaintiff is an annual one.
5. Defendant JOSE LUIS VASQUEZ, a natural person, entered into a rental

agreement to reside at 900 9th Avenue East, Lot #182, Palmetto, FL 34221 owned by COLONIAL MANOR MHC HOLDINGS, LLC, and he is the co-owner of the mobile home on said premises.

6. Defendant, MARY ROSELLA HUFFMAN VASQUEZ, entered into a rental agreement to reside at 900 9th Avenue East, Lot #182, Palmetto, FL 34221 owned by COLONIAL MANOR MHC HOLDINGS, LLC.

7. In accepting the rental agreement, Defendants JOSE LUIS VASQUEZ and MARY ROSELLA HUFFMAN VASQUEZ accepted and agreed to be bound by the Prospectus and Rules and Regulations of COLONIAL MANOR MHC HOLDINGS, LLC.

8. Defendant(s), Any Unknown Party in Possession, may reside on the real property at 900 9th Avenue East, Lot #182, Palmetto, Manatee County, FL 34221, Manatee County, but if so, does without the consent of the Plaintiff.

9. Defendants, JOSE LUIS VASQUEZ and MARY ROSELLA HUFFMAN VASQUEZ, have violated the Rules and Regulations of COLONIAL MANOR MHC HOLDINGS, LLC, specifically, Rule 7, pertaining to the use of the covered driveway and the exterior of Lot 182 for storage of multiple items, including, without limitation, lawn mowers, tools, boxes and traffic cones. A copy of the Rules and Regulations of the Plaintiff are attached to this Complaint as Plaintiff's Exhibit A.

10. Defendants, JOSE LUIS VASQUEZ and MARY ROSELLA HUFFMAN VASQUEZ, have also violated the Rules and Regulations of COLONIAL MANOR MHC HOLDINGS, LLC, specifically, Rules 15 and 22 regarding additions not approved by park management and regarding unapproved fences and/or gates around the lot or home.

11. On November 4, 2022, the Defendants JOSE LUIS VASQUEZ and MARY ROSELLA HUFFMAN VASQUEZ, were notified by certified mail, return receipt requested, and by posting, that they violated Rules 7, 15 and 22 (Rules on Lot and Home Maintenance and

Prohibiting Storage, Rule Prohibiting Additions to the home or lot without prior Park Management Approval and Rule Prohibiting Fences and Gates on any Lot or Home) and pursuant to that notice were provided seven (7) days to correct all of the violations by removing the lattice fence and removing lawn mowers, tools, boxes, traffic cones and other items stored outside from the exterior of the premises of lot 182. A copy of the notice and certified proof of mailing are attached to this Complaint as Plaintiff's Exhibit B.

12. On November 4, 2022, Exhibit B was also posted on 900 9th Avenue East, Lot #182, Palmetto, Manatee County, FL 34221 pursuant to Fla. Stat. §723.061.

13. After providing more than the seven days of notice set forth pursuant to Fla. Stat. §723.061 to cure the violations described in paragraphs 9 and 10, Defendants JOSE LUIS VASQUEZ and MARY ROSELLA HUFFMAN VASQUEZ did not cure the violations of Rules 7, 15 and 22 of the Rules and Regulations of COLONIAL MANOR MHC HOLDINGS, LLC.

14. As a result, on December 14, 2022, Plaintiff posted on the premises and sent by Certified Mail Return Receipt Requested, a notice of termination of the Defendants JOSE LUIS VASQUEZ'S VASQUEZ and MARY ROSELLA HUFFMAN VASQUEZ right to reside on the premises, granting them 30 days to vacate the premises of 900 9th Avenue East, Palmetto, FL 34221, lot 182. A copy of the Notice of Termination of Tenancy and proof of certified mail are attached hereto as Plaintiff's Exhibit C.

15. Plaintiff also posted Exhibit C on the premises of Defendants on December 14, 2022.

16. As of the date of the filing of this Complaint, the Defendant, JOSE LUIS VASQUEZ and MARY ROSELLA HUFFMAN VASQUEZ have not complied with the Rules and Regulations of COLONIAL MANOR Rules 7, 15 and 22 by refusing to remove the fence or outside storage and failing to maintain the exterior premises of lot 182.

17. Plaintiff has not accepted rent since the date that the Defendants failed to correct violations of park rules and regulations as stated herein.

18. Pursuant to Section 723.068 of Florida Statutes, Plaintiff is entitled to an award of costs and attorney fees arising out of the action.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment for possession of the premises together with costs and reasonable attorney's fees against Defendants, JOSE LUIS VASQUEZ, MARY ROSELLA HUFFMAN VASQUEZ and ANY UNKNOWN PARTY IN POSSESSION, and such other and further relief as the Court may deem proper.

COUNT II
ACTION FOR DAMAGES (RENTAL)

19. This is an action seeking less than \$30,000.00 excluding costs, interest and attorney fees.

20. Plaintiff re-alleges the facts contained within paragraphs 1 through 18 as though fully set forth herein.

21. Plaintiff, as landlord, leased to Defendants, JOSE LUIS VASQUEZ and MARY ROSELLA HUFFMAN VASQUEZ, Lot 182, 900 9th Avenue East, Palmetto, FL 34221 of the above stated mobile home park at a monthly rental fee of \$723.50.

22. Plaintiff has suffered damages for unpaid rent, court costs and a reasonable attorney fee arising out of the prosecution of this action.

23. Plaintiff has retained the undersigned counsel to represent it in this action and has agreed to pay it a reasonable fee for its services.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment against Defendant, JOSE LUIS VASQUEZ and MARY ROSELLA HUFFMAN VASQUEZ for damages, costs, and attorney fees.

COUNT III

ACTION TO ENFORCE LANDLORD'S LIEN

24. This is an action seeking to enforce a landlord's lien pursuant to Sections 713.691 and 713.77 of Florida Statutes.

25. The Plaintiff re-alleges the facts contained within paragraphs 1 through 23 as though fully set forth herein.

26. Defendants, JOSE LUIS VASQUEZ and MARY ROSELLA HUFFMAN VASQUEZ, are the registered owners of a *1980 NOBILITY HOMES, INC double wide mobile home, VIN N22079A, Title No. 0019020268 and VIN N22079B, Title No. 0019020269*, located on Lot #182 of the property leased by the Plaintiff to the Defendant.

27. Upon the Plaintiff being determined to be entitled to judgment for possession of the premises in this Complaint, Plaintiff is entitled to a landlord's lien against said mobile home to enforce its judgment against Defendant for any unpaid rent, utility bills, late fees, and damage to the real property caused by the Defendant, plus court costs and a reasonable attorney's fee for the pursuit of this eviction and for related relief.

28. The Plaintiff claims entitlement to enforce its lien against said mobile home by judicial sale pursuant to Florida Statute §45.031.

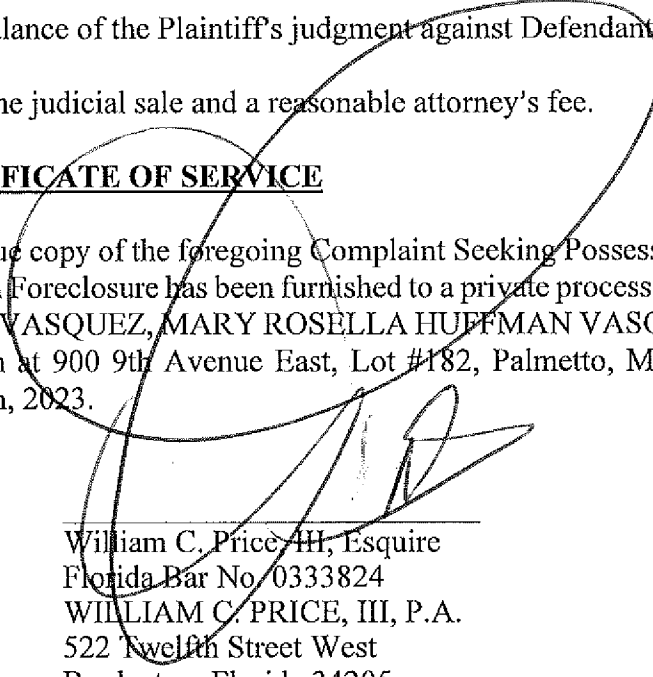
29. The Plaintiff is entitled to credit toward the purchase of said mobile home in the sum representing all of Plaintiff's judgment against the Defendants, JOSE LUIS VASQUEZ and

MARY ROSELLA HUFFMAN VASQUEZ, all costs of this proceeding and reasonable attorney's fees.

WHEREFORE, the Plaintiff prays this Honorable Court enter an order, ordering a judicial sale of the mobile home identified herein pursuant to Florida Statute §45.031 to occur between thirty (30) and forty-five (45) days after the rendition of judgment for possession and damages in the above-styled cause, and to grant the Plaintiff a credit toward the purchase of the mobile home representing the unpaid balance of the Plaintiff's judgment against Defendants, plus any costs expended by it for obtaining the judicial sale and a reasonable attorney's fee.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Complaint Seeking Possession of Residential Premises, Damages and Lien Foreclosure has been furnished to a private process server for service upon the Defendant(s) JOSE VASQUEZ, MARY ROSELLA HUFFMAN VASQUEZ, and Any Unknown Party in Possession at 900 9th Avenue East, Lot #182, Palmetto, Manatee County, FL 34221 on 29 day of March, 2023.



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